

And the other Writs, commonly called the Ship-writs, are against the Laws of the Realm, the Right of Property, and the Liberty of the Subjects, and contrary to former Resolutions in Parliament, and to the Petition of Right.

4. That the Judgment in the Exchequer in Mr. *Hampdens* Case, a Transcript whereof followeth *in hæc verba*: (*viz. Quod separalia brevia prædicta & retorna eorundem, ac schedul. prædict. eidem annexat. ac materia in eidem content. sufficien. in lege exist. ad præf. Joh. Hampden de prædictis viginti solidis super ipsum in forma & ex causa præd. assessis, onerand. Ideo consideratum est per eosdem Barones, quod præd. Johannes Hampden de eidem viginti solidis oneretur, & inde satisfaciatur.*) In the matter and substance thereof and in that it was conceived that Mr. *Hampden* was any way chargeable, is against the Laws of the Realm, the Right of Property, the Liberty of the Subjects, and contrary to former Resolutions in Parliament, and to the Petition of Right.

These Votes were afterwards transmitted by the House of Commons to the Lords, and delivered by Mr. *Saint-John* now his Majesties Solicitor General, at a Conference of both Houses of Parliament, held 16 Car. 1640.

Die Mercur. 20. die Jan. 1640.

It was Resolved by the Lords upon the Question,
Nemine contradicente :

I. **T**hat the Ship-Writs, the extrajudicial Opinions of the Judges therein, both first and last, and the Judgment given in Mr. *Hampdens* Case, and the proceedings thereupon in the Exchequer Chamber, are all illegal, and contrary to the Laws and Statutes of this Realm, contrary to the Rights and Proprieties of the Subjects of this Realm, contrary to former Judgments in Parliaments, and contrary to the Petition of Right.

Likewise Resolved upon the Question,
Nemine contradicente :

II. **T**hat the extrajudicial Opinions enrolled in the Exchequer Chamber, and in other Courts concerning Ship-money, and all the proceedings thereupon are illegal in part and in whole, and contrary to the Laws and Statutes of this Realm, and contrary to the Rights and Proprieties of the Subjects of this Realm, and contrary to former Judgments in Parliaments, and contrary to the Petition of Right.

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Die Veneris, 26. die Februarii, 1640.

UPon the Report of the Right Honourable the Lords Commissioners appointed to consider of the way of Vacating of the Judgment in the Exchequer concerning Ship-money, It was Ordered by the Lords Spiritual and Temporal in the High Court of Parliament assembled, That the Lord Keeper, or the Master of the Rolls, the two Lord Chief Justices, and the Lord Chief Baron, and likewise the Chief Clerk of the Star-Chamber, shall bring into the Upper House of Parliament the Record in the Exchequer of the Judgment in *Mr. Hampdens Case* concerning Ship-money; and also the several Rolls in each several Court of Kings Bench, Common-Pleas, Exchequer, Star-Chamber, and Chancery, wherein the Judges extrajudicial Opinions in the Cases made touching Ship-money be entered, and that a *Vacat* shall be made in the Upper House of Parliament of the said several Records. And likewise the Judgment of Parliament touching the illegality of the said Judgments in the Exchequer, and the proceedings thereupon, and touching the illegality of the extrajudicial Opinions of the Judges in the said several Courts concerning Ship-money, be annexed and apostilled unto the same: And that a Copy of the Judgment of the Parliament concerning the illegality of the said Judgment in the Exchequer, and the said extrajudicial Opinions of the said Judges concerning Shipmoney, be delivered to the several Judges of Assize; And that they be required to publish the same at the Assizes in each several County within their Circuits, and to take care that the same be entered and enrolled by the several Clerks of Assizes; And if any Entry be made by any *Custos Rotulorum*, or Clerk of Assize, of the said Judgment in the Exchequer, or of the said extrajudicial Opinions of the Judges, that several *Vacats* be made thereof, *per judicium in Parlamento*: And that an Act of Parliament be prepared against the said Judgment and extrajudicial Opinions, and against the Proceedings touching Ship-money.

Memorandum quod Vicesimo septimo die Febr. 1640. Annoque regni Regis Domini nostri Caroli Anglie decimo sexto:

VAcatur istud Recordum & Judicium inde habitum per considerationem & judicium Dominorum Spiritualium & Temporalium in Curia Parliamenti. & in rotulamentum ejusdem cancellatur.

Memorandum quod Vicesimo septimo die Feb. præd.

Istud Irrotul. & omnia & singula in eodem contenta & expressa vacantur per judicium Dominorum Spiritualium & Temporalium in Curia Parliamentum.

And that all the Rolls be rased cross with a Pen, and subscribed with the Clerk of the Parliaments hand. All which was accordingly done in open Court.

After this it was Resolved upon the Question,
Nemine contradicente :

That the Resolutions of the Judges touching the Shipping-money, and the Judgment given against Mr. *Hampden* in the Exchequer, and all the Proceedings thereupon, are against the Great Charter, and therefore void in Law.

Resolved upon the Question,
Nemine contradicente :

That *Vacats* and Cancellations shall be made of the Resolutions of the Judges touching the Shipping-money ; and of the Enrolments thereof in the several Courts, and of the Warrants for Ship-Writs, and proceedings therein ; and the Judgment given against Mr. *Hampden*, and proceedings thereupon ; and that Entries be made of those *Vacats* upon the several Rolls, according to the Form read in the House.

Eodem Die.

Ordred that these Resolutions be added to the former Judgments of this House concerning Shipping-money, which the Judges are to publish at the Assizes in their several Counties, and to be Entered and Enrolled in the several Counties by the Clerk of the Assizes.

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